Tentative Rulings for July 20, 2026
Department M301

To request oral argument, you must notify Judicial Secretary Kari Gates at (760) 904-5722 and inform all other counsel no later than 4:30 p.m.

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at Riverside Superior Court-Tentative Rulings.. If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department M301 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at Riverside Superior Court-Remote Appearances

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: 161 538 5472

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVME2504231	SCHROEDER VS GENERAL MOTORS	MOTION FOR JUDGMENT ON THE PLEADINGS ON COMPLAINT FOR BREACH OF CONTRACT/WARRANTY BY GENERAL MOTORS

Tentative Ruling: Motion for Judgment on the Pleadings is continued to the date of 10-13-26 8:30 am M301. The Court will exercise it's discretion to consider the late opposition as the motion is potentially dispositive. See *Kapitanski v. Von's Grocery Store* (1983) 146 Cal. App. 3d 29, 32. The Defendant may file a reply brief in accordance with the rules but aside from that, no further briefing will be accepted.

2.

CASE #	CASE NAME	HEARING NAME
CVSW2406213	DEHAAN VS ENGLAND FAMILY MORTUARY	MOTION FOR ATTORNEYS FEES BY TINA DEHAAN, MICHAEL MAISANO

Tentative Ruling: Evidentiary Objections sustained in part/overruled in part. Plaintiff's motion for Attorney's Fees is granted in part. The Court awards $209,716.00. This consists a Lodestar computed as follows: Attorney - $202,136.00 (367.52 Hours at $550/hr.) and Paralegal $7,580 37.90 hrs at $200/hr.) Request for Multiplier denied.

Evidentiary Objections are ruled on as follows:

Whooper Declaration — Objection Nos. 5 and 17–20 are SUSTAINED. Objection Nos. 7–13, 15, and 16 are SUSTAINED in part and OVERRULED in part (sustained as to legal conclusions and overruled as to factual testimony). Objection Nos. 1–4, 6, and 14 are OVERRULED. Exhibits to the Whooper Declaration — Objection Nos. 1–5 are OVERRULED.

Hartman Declaration — Objection Nos. 1 and 2 are SUSTAINED in part and OVERRULED in part (sustained as to statements resting on what Mr. Whooper told him, and overruled as to Mr. Hartman's own opinion).

Prevailing Party - Plaintiffs are prevailing parties under the Labor Code fee-shifting provisions (Labor Code §§ 218.5, 226, 1194, 1102.5, 2802). The 998 Offer accepted by Maisano expressly preserved his right to recover "attorney's fees allowed by law, incurred to the date of this offer as determined by the court, according to proof." (Pls.' Mot. 1:6–11.) DeHaan's Settlement Agreement expressly provided that "Defendants will not contest that Plaintiff or Maisano were prevailing parties." (*Id.* at 1:12–17.) Defendants do not contest prevailing party status. The only issue is the reasonable amount of fees.

Request - Plaintiffs initially requested total fees of $428,112.00, based on a $356,760.00 lodestar (410.80 attorney hours at $850/hour and 37.90 paralegal hours at $200/hour) with a 1.2 multiplier. In their reply, Plaintiffs withdrew the 7.5-hour January 23, 2026 Yadira Munoz deposition entry and revised the requested lodestar to $350,385.00 (403.30 attorney hours at $850/hour and 37.90 paralegal hours at $200/hour), resulting in a revised total request of **$420,462.00** with the 1.2 multiplier.

Based on the evidence provided, the Court finds the appropriate hourly rate for Mr. Whooper in this Riverside County case to be **$550 per hour**—above Mr. Klein's $425 and Mr. Bradford's $465, and toward the upper end of the local range, to reflect Mr. Whooper's 15 years of experience and specialized employment law practice. The Court finds the $200 paralegal rate to be reasonable.

Plaintiffs originally claimed 410.80 attorney hours and 37.90 paralegal hours through April 30, 2026. Following the withdrawal of the 7.5-hour January 23, 2026 Yadira Munoz entry in reply, Plaintiffs now claim 403.30 attorney hours and 37.90 paralegal hours. Defendants identify multiple problems with the billing records: block-billing, clerical work billed at attorney rates, and excessive time entries.

Trial preparation - Given that the case involved five party witnesses, four third-party witnesses, one expert, less than 50 exhibits, and only two motions in limine (which resolved by stipulation), the Court finds 83.5 hours to be excessive. The Court should therefore reduces these trial preparation hours by deducting 16.7 hours**.**

MSJ Opposition Block-Billing - Entries for January 1–2, 2026 show 15.1 hours on January 2 and 13.2 hours on January 1, both described as "drafting and editing" MSJ opposition, separate statement, declaration, and exhibits for a total of 28.3 hours. (Whooper Decl. ¶ 10, Ex. A.) These are excessive single-day block-billed entries lacking specificity. The Court reduces these entries by deducting 5.7 hours.

The billing records include non-compensable work:

April 2, 2026: "Review file, billing, expenses; issue payments to vendors" (**1.0 hour**, $850)

March 5, 2026: "Save invoice; W-9/W-4 correspondence paralegal" (**0.2 hour**, $40)

January 26, 2026: "Dropbox link/expert document-sharing/communications to defense paralegal" (**1.3 hours**, $260)

These are ordinary law-office overhead or clerical tasks not compensable at attorney rates. (*Collins v. City of Los Angeles* (2012) 205 Cal.App.4th 140, 159.) The Court deducts 2.5 hours for administrative/clerical work.

Other Excessive Entries: Multiple entries show excessive time for routine tasks, for a total of 54.4 hours:

April 29, 2026: 5.3 hours to draft fee declaration

February 10, 2026: 6.4 hours to confer with expert

February 1, 2026: 1.4 hours to review minute order and draft notice of ruling

December 29, 2025: 12.4 hours to prepare deposition summaries

December 5, 2025: 13.1 hours to draft, revise, proofread, and finalize mediation brief

November 18, 2025: 6.4 hours for research trade secret and draft meet and confer letter

February 15, 2025: 9.4 hours to calculate damages demand

(Klein Decl. ¶ 6.) The Court reduces these entries by deducting 10.88 hours.

Accordingly, the Court reduces a total of 35.78 attorney hours from a baseline of 403.3 hours (410.80 hours claimed – 7.5 hours withdrawn), leaving 367.52 attorney hours. The Court finds 37.90 paralegal hours at $200/hour reasonable.

Maisano's 998 Offer entitled him to fees "incurred to the date of this offer." (Pls.' Mot. 1:6–11.) The offer was sent on February 13, 2026 (Whooper Decl. ¶ 10, Ex. A), and was accepted and filed with the Court on February 20, 2026 (Pls.' Mot. 1:6–11). Plaintiffs billed approximately 83.5 hours after February 13, 2026. (Whooper Decl. ¶ 10, Ex. A.) DeHaan's Settlement Agreement, by contrast, allows recovery of all fees including those related to the fee motion through May 1, 2026. (Pls.' Mot. 1:12–17.)

Plaintiffs, however, made no meaningful attempt to allocate post-February 13, 2026, work between Maisano (who cannot recover post-offer fees except as expressly allowed) and DeHaan. Where compensable and non-compensable work can be separated, apportionment is required.

(*See Bell v. Vista Unified Sch. Dist.* (2000) 82 Cal.App.4th 672, 686–88.) As Defendants point out, Plaintiffs seek one undifferentiated lodestar through April 30, 2026, including fee-motion work. Defendants thus ask the Court to further reduce the fee award tied to post-February 13, 2026, work by 50 percent.

The Court declines to impose Defendants' proposed 50 percent reduction because: (1) the parties are married, (2) much of the post-February 13, 2026 work (trial preparation, settlement negotiation) benefited both Plaintiffs collectively, and (3) DeHaan's Settlement Agreement expressly permits fee motion work through May 1, 2026. Plaintiffs' reply further argues that trial preparation, settlement work, and fee-motion work concerned common facts, common defendants, and intertwined recoverable claims, such that apportionment would be impracticable under *Bell*, and that Defendants have not identified any specific post-February 13, 2026 billing entry attributable solely to Mr. Maisano. The Court has already substantially reduced excessive trial preparation hours billed between February 12 and February 26, which addresses much of Defendants' concern about post-offer billing.

Multiplier - Plaintiffs request a 1.2 multiplier based on: (1) contingent risk; (2) delayed payment; (3) difficulty and specialized skill; (4) quality of result; and (5) preclusion of other work.

"[T]he trial court is not *required* to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, although it retains discretion to do so in the appropriate case." (*Nichols*, *supra*, 155 Cal.App.4th at 1241 [italics in original].) Moreover, "when determining the appropriate enhancement, a trial court should not consider these factors to the extent they are already encompassed within the lodestar." (*Ketchum*, *supra*, 24 Cal.4th at 1138.)

Contingent Risk and Delayed Payment: Plaintiffs' counsel handled the case on contingency and advanced $37,115.12 in costs. (Whooper Decl. ¶ 60, Ex. B.) Plaintiffs' counsel went without payment from 2024 through settlement in February 2026 and continues without payment through this fee motion. (*Id.* at ¶ 61.) However, Defendants' evidence shows that local employment attorneys (Boylston and Hernandez) were available and willing to take the case. (Boylston Decl. ¶ 4; Hernandez Decl. ¶ 4.) This undermines any claim that this was an unusually undesirable or unmarketable case warranting enhancement. Moreover, wage and hour claims in California provide strong statutory protections for employees, including derivative penalties, interest, and fee-shifting, reducing the contingency risk.

Skill and Difficulty: Plaintiffs argue the case required specialized skill due to piece-rate/flat-rate compensation, lack of conventional time records, nonproductive time, meal/rest period violations, business expense reimbursement, individual liability claims, and retaliation. However, these factors are largely reflected in the hourly rate. "[T]he reasonable hourly rate [used to calculate the lodestar] is the product of a multiplicity of factors . . . the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case." (*Ketchum*, *supra*, 24 Cal.4th at 1139.) The Court has awarded $550/hour, at the upper end of the Riverside market, which already accounts for skill and difficulty.

Quality of Result: Plaintiffs defeated Defendants' MSJ/MSA in full on all causes of action after oral argument. (Whooper Decl. ¶ 43.) Plaintiffs also obtained Defendants' express agreement to pay reasonable attorney's fees on top of the underlying settlement. (Pls.' Mot. 1:12–17.) While the MSJ/MSA defeat and the fee-shifting terms of the settlement reflect a favorable outcome, settlement posture and results are affected by many factors beyond attorney skill, and therefore, this factor carries only modest weight.

Preclusion of Other Work: Mr. Whooper handled all substantive work as managing attorney of a small firm, and the case materially precluded other employment during depositions, MSJ opposition (December 2025–January 2026), and trial preparation. (Whooper Decl. ¶ 64.) This factor carries some weight.

The contingent nature of the representation and delayed payment, combined with some preclusion of other work, provide modest support for an enhancement. However, the availability of local counsel and the $550/hour rate already reflecting skill and difficulty substantially diminish the case for a multiplier. The Court therefore exercises its discretion to deny the requested 1.2 multiplier.